

KNIGHT v BOGAARD, et al

24CV47322

DEFENDANT'S COUNSEL'S MOTION TO BE RELIEVED

This matter arises from allegations of fraud brought by Penny Knight ("Plaintiff") against Byron Bogaard ("Bogaard"), Nathan Tremble ("Tremble") and MaxKing Holdings, LLC ("LLC") (collectively "Defendants.")

Now before the Court is a motion to be relieved as counsel filed by attorney David S. Kahn ("Kahn") of the law firm of Gavrilov & Brooks ("Gavrilov.") Khan seeks to withdraw as counsel for Defendants.

Bogaard and Tremble do not oppose the motion as to themselves. However, they oppose the motion to withdraw as to the LLC on the grounds that the LLC cannot represent itself pro per and will be prejudiced if Kahn is allowed to immediately withdraw.

I. BACKGROUND

Plaintiff filed her complaint against Defendants on April 16, 2024. On May 29, 2024, Defendants filed their answers and a cross-complaint against Plaintiff. Those documents reflect that Defendants were, at the time, represented by Gavrilov, and the documents signed by an attorney named Kalle Mikkola.

According to Defendants, their assigned attorney at Gavrilov departed without providing them with any notice. Defendants assert that as a result of this departure, they were left without adequate representation by Gavrilov which resulted in the foreclosure of real property which was purportedly LLC's sole material asset. This foreclosure happened in April of 2025.

At some point Kahn became the attorney primarily in charge of this matter. A settlement conference was held on November 3, 2025. The parties did not reach a settlement and the matter was set for trial on March 4, 2026.

The instant motion to withdraw was filed on November 24, 2025. The declaration accompanying the motion states that it is based upon a "fundamental disagreement"

with the client and a breakdown in the attorney-client relationship. (Declaration of David S. Kahn.)

Defendants assert that motion to withdraw came after they engaged in discussions with Kahn/Gavrilov about the attorney transition and path moving forward.

II. LEGAL STANDARD AND ANALYSIS

Code of Civil Procedure section 284 provides that an attorney in an action may be changed at any time before judgment either upon the consent of the client and attorney or upon order of the Court. California Rule of Court 3.1362(a) requires that the “notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel-Civil (Form MC-051).”

The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court. (*Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1133.) Further, the right to withdraw is not absolute, and the Court must take into account the potentially prejudicial impact upon the withdrawing-attorney’s client. (*Vann v. Shilleh* (1975) 54 Cal.App.3d 192, 197.)

Here, the Court is concerned about the timing of the motion as to the LLC given pending depositions and trial date. Accordingly, the motion to withdraw is **GRANTED as to Bogaard and Tremble individually** but the parties are ordered to appear at the hearing for further discussion to determine the motion as to the LLC.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order once the issue of LLC representation is resolved..

GREENROOT v WEBSTER

25CV48032

DEFENDANT’S MOTION FOR TERMINATING SANCTIONS/ DEFENDANT’S MOTION TO EXPUNGE LIS PENDENS

This case involves a contract dispute concerning real property brought by Lorna Greenroot (“Plaintiff”) against Penelope Webster (“Webster.”) Now before the Court are two separate motions filed by Defendant: 1) Motion for Terminating Sanctions and 2) Motion to Expunge Lis Pendens. As the motions regard the same set of facts and procedural history, the Court will consider all both herein.

The motions are unopposed, which the Court notes may be “deemed a consent to the granting of the motion.” (Cal. Rules of Court, 8.54(c).)

I. Background

On September 8, 2025, the Court granted an Order (1) compelling Plaintiff to serve verified responses, without objection, to Special Interrogatories Set One, (2) compelling her to serve verified responses, without objection, to the Request for Production of Documents Set One, and produce all responsive documents, and (3) ordering her to pay sanctions in the amount of \$820. Plaintiff was to serve the responses and pay the sanctions by September 19, 2025. Plaintiff did not comply with this Order of the Court and has failed to provide either set of responses or pay sanctions. (Declaration of Michael Fluetsch (“Fluetsch Decl.”) ¶ 5.)

On September 25, 2025, the Court granted another Order (1) compelling Plaintiff to serve code-compliant responses to the Request for Production of Documents Set Two, and (2) ordering her to pay additional sanctions in the amount of \$660. Production and payment of sanctions were due by October 3, 2025. Plaintiff did not comply with this Order of the Court and has failed to provide the responses or pay sanctions. (Declaration of Michael Fluetsch (“Fluetsch Decl.”) ¶ 7.)

Plaintiff also has refused to sit for her deposition. On October 10, 2025, defense counsel served a “Notice of Taking Deposition of Plaintiff Lorna Greenroot and Request for Documents.” (Fluetsch Decl. ¶ 8, Ex. C.) Plaintiff failed to appear for her noticed deposition or produce the documents. (*Ibid.*) Defendant’s attorney sent a meet and